

CHAPTER 34.

An Act to amend the law with regard to the
destruction of children at or before birth.

[10th May 1929.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) Subject as hereinafter in this subsection
provided, any person who, with intent to destroy
the life of a child capable of being born alive, by any
wilful act causes a child to die before it has an existence
independent of its mother, shall be guilty of felony, to
wit, of child destruction, and shall be liable on conviction
thereof on indictment to penal servitude for life :

Punishment
for child
destruction.

Provided that no person shall be found guilty of an
offence under this section unless it is proved that the act
which caused the death of the child was not done in
good faith for the purpose only of preserving the life of
the mother.

(2) For the purposes of this Act, evidence that a
woman had at any material time been pregnant for a
period of twenty-eight weeks or more shall be *prima*
facie proof that she was at that time pregnant of a child
capable of being born alive.

2.—(1) A court of quarter sessions shall not have
jurisdiction to inquire of, hear, or determine any indict-
ment for an offence under this Act, or for an attempt
to commit any such offence.

Prosecution
of offences.

(2) Where upon the trial of any person for the
murder or manslaughter of any child, or for infanticide,
or for an offence under section fifty-eight of the Offences
against the Person Act, 1861 (which relates to
administering drugs or using instruments to procure
abortion), the jury are of opinion that the person
charged is not guilty of murder, manslaughter or
infanticide, or of an offence under the said section
fifty-eight, as the case may be, but that he is shown

24 & 25 Vict.
c. 100.

by the evidence to be guilty of the felony of child destruction, the jury may find him guilty of that felony, and thereupon the person convicted shall be liable to be punished as if he had been convicted upon an indictment for child destruction.

(3) Where upon the trial of any person for the felony of child destruction the jury are of opinion that the person charged is not guilty of that felony, but that he is shown by the evidence to be guilty of an offence under the said section fifty-eight of the Offences against the Person Act, 1861, the jury may find him guilty of that offence, and thereupon the person convicted shall be liable to be punished as if he had been convicted upon an indictment under that section.

(4) Section sixty of the Offences against the Person Act, 1861 (which provides that a person acquitted of the murder of any child, or of infanticide, may, if shown by the evidence to be guilty of concealing the birth, be convicted and punished accordingly), shall apply in the case of the acquittal of a person on an indictment for child destruction as it applies to the acquittal of a person on an indictment for murder or infanticide.

61 & 62 Vict.
c. 36.

(5) Section four of the Criminal Evidence Act, 1898, shall have effect as if this Act were included in the schedule to that Act.

Short title
and extent.

3.—(1) This Act may be cited as the *Infant Life (Preservation) Act, 1929*.

(2) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 35.

An Act to amend section eighteen of the Fire Brigade Pensions Act, 1925.

[10th May 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present